

See also: The Declaration of the Rights of Man 118–119 ■ The United Nations and International Court of Justice 212–219
 ■ The Universal Declaration of Human Rights 222–229 ■ The International Criminal Court 298–303

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Freedom of opinion and freedom of expression are indispensable conditions for the full development of the person.

Human Rights Committee
General Comment No.34

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also required to adopt laws that protect the rights contained in the Covenant and to use government resources to ensure that the rights are protected.

Among the rights enshrined in the Covenant are freedom of thought, religion, expression, and assembly; the right to a fair trial; freedom from torture and other inhuman or degrading treatment; and equality of treatment before the law. Discrimination on grounds of race, gender, language, religion, or social class is outlawed. Article 25 guarantees the right of citizens to vote and be elected at free elections held at regular intervals, leading some to criticize the ICCPR for representing only a Western tradition of democracy. Some signatories have ignored parts of the Covenant when it suits them. For example, Indonesia's blasphemy laws have been used against non-Muslims.

Scrutinizing states

Currently, 173 states have ratified the ICCPR. Each is required to submit a report to the UN's Human

Chilean politician Michelle Bachelet was appointed to the role of UN's high commissioner for human rights in 2018, charged with ensuring that the ICCPR and other human rights treaties function properly.

Rights Committee (HRC) every 4 to 5 years on what progress the country is making to implement the rights contained within the Covenant. The HRC is a body of 18 experts from signatory nations, empowered to scrutinize states and issue recommendations on their human rights compliance. Although not formally a court, the decisions of the HRC have been vital in shaping human rights law.

Taking action against states

The First Optional Protocol to the 1966 ICCPR allows individuals in the 116 states that have ratified the Protocol (which include France, Germany, Russia, and Brazil) to refer their country to the HRC if they believe it has violated their rights under the ICCPR. In

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... the ideal of free human beings enjoying civil and political freedom ... can only be achieved if conditions are created whereby everyone may enjoy his civil and political rights ...

ICCPR preamble

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1994, Nicholas Toonen used this Protocol to take the Australian government to the HRC on the grounds that Tasmanian laws criminalized sexual relationships between men. He successfully argued that this was a violation of Article 17, the right to privacy.

The HRC has also helped in cases where a victim of human rights violations has nowhere else to turn. Jehovah's Witnesses have brought a series of cases against the government of South Korea, objecting to the punishments imposed on those who refused to be conscripted into the army. They successfully argued that this was a violation of Article 18 of the ICCPR, which protects freedom of conscience and belief.

Despite its many successes, the HRC does not have the power to force states to follow the provisions of the Covenant. Furthermore, its resources are limited, so it struggles to keep pace with the influx of complaints and reports it receives. As a result, some states continue to flout the Covenant. ■